

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Esme Trontz	Team: Squad #07	CCRB Case #: 202004326	☒ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 06/01/2020 8:45 PM, Tuesday, 10/06/2020 10:00 AM, Wednesday, 10/14/2020 4:00 PM	Location of Incident: West 55th Street and 6th Avenue	18 Mo. SOL 5/4/2022	Precinct: 18		
Date/Time CV Reported Mon, 06/01/2020 8:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/17/2020 11:11 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Katherine Osipowich	26335	961046	MTN PCT
2. POF Liosmely Holguin	13031	966628	MTN PCT
3. LT Richard Mack	00000	916095	SRG 4
4. SDS Keith Bryan	05386	901240	DB CRD

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Christophe Schmidt	00000	907284	SRG 1
2. SGT George Kalogeropoulos	05279	942902	MTN PCT
3. SGT Steven Gansrow	00301	928345	SRG 4
4. POM Jason Brown	30226	950110	MTN PCT
5. SGT Aneudy Rosa	03607	931950	010 PCT
6. SGT Brian Gonzalez	02627	941826	010 PCT
7. POM Jonathan Ku	20058	951890	SRG 4
8. POM Algenis Pena	00846	953228	SRG 4
9. SGT Jeffrey Murphy	03654	928834	PBMS
10. SGT Kerin Quinn	02406	954746	SRG 4
11. CPT Ronald Ramos	00000	935562	SRG 4
12. POM Mikel Strauch	03127	940775	SRG 4

Officer(s)	Allegation	Investigator Recommendation
A . LT Richard Mack	Force: Lieutenant Richard Mack used pepper spray against Individuals.	A . Exonerated

Officer(s)	Allegation	Investigator Recommendation
B . POF Liosmely Holguin	Force: Police Officer Liosmely Holguin struck § 87(2)(b) with a baton.	B . Substantiated
C . SDS Keith Bryan	Abuse: Sergeant Keith Bryan did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . SDS Keith Bryan	Force: Sergeant Keith Bryan used pepper spray against Individuals.	D . Substantiated
E . SDS Keith Bryan	Force: Sergeant Keith Bryan used pepper spray against § 87(2)(b)	E . Substantiated
F . SDS Keith Bryan	Force: Sergeant Keith Bryan used pepper spray against § 87(2)(b)	F . Substantiated
G . POF Liosmely Holguin	Untruthful Stmt.: On October 6, 2020, Police Officer Liosmely Holguin provided a misleading official statement to the CCRB.	G . Substantiated
H . POF Katherine Osipowich	Untruthful Stmt.: On October 14, 2020, Police Officer Katherine Osipowich provided a misleading official statement to the CCRB.	H . Substantiated

Case Summary

§ 87(2)(b) filed this complaint with IAB on June 1, 2020, on behalf of himself and his wife, § 87(2)(b). It was received by the CCRB on June 17, 2020 via IAB log § 87(2)(b).

On June 1, 2020, § 87(2)(b) and § 87(2)(b) attended a march in Manhattan that began at Union Square Park and was supposed to conclude at Trump Tower in Midtown. When the protest reached the West 50s and Sixth Avenue, some individuals began looting businesses, and calls for backup soon began bombarding the radio around the 18th precinct (Midtown North). Just before 8:42 p.m., § 87(2)(b) and § 87(2)(b) passed West 55th Street and Sixth Avenue, approaching West 56th Street, and § 87(2)(b) began recording a video on his cell phone. At some point, Lieutenant Richard Mack of Strategic Response Group 4 engaged his pepper spray toward a group of individuals running toward him (**Allegation A: Force – Pepper Spray, Exonerated**). Sergeant George Kalogeropoulos and his officers, Police Officers Liosmely Holguin, Katherine Osipowich, and Jason Brown, all from the Midtown North Precinct, exited their vehicle parked in the middle of the road. § 87(2)(b) saw Police Officer Osipowich running toward a protester kneeling on the sidewalk, and § 87(2)(b) ran between Police Officer Osipowich and the protester. After a few seconds of yelling and fighting between § 87(2)(b) other protesters, and officers, Police Officer Holguin lifted her baton three feet into the air and brought it straight down, hitting § 87(2)(b) on the right side of her face (**Allegation B: Force – Baton Strike, Substantiated**). § 87(2)(b) felt with her tongue that her tooth was chipped and walked away from the struggle.

§ 87(2)(b) ran over to § 87(2)(b) to check that she was okay, and she said she had been hit in the face by an officer and was bleeding. § 87(2)(b) and § 87(2)(b) walked over to Sergeant Keith Bryan of the Central Robbery Division, who was standing at the edge of the sidewalk pacing back and forth guarding an arrestee. For several minutes, § 87(2)(b) and § 87(2)(b) tried to speak with Sergeant Bryan and obtain the name of the officer who hit § 87(2)(b). Sergeant Bryan did not respond to most of their questions and requests, including when § 87(2)(b) told Sergeant Bryan to look at her face and then said, “Can’t you see I just got hit?” (**Allegation C: Abuse of Authority – Refusal to Obtain Medical Treatment, Unsubstantiated**). Sergeant Bryan periodically told protesters nearby to get back, and after a few minutes he pepper sprayed § 87(2)(b) and several other nearby civilians (**Allegations D, E, F: Force – Pepper Spray, Substantiated**). § 87(2)(b) and § 87(2)(b) left the protest and § 87(2)(b) called the Internal Affairs Bureau shortly after to file a complaint (Board Review #01). § 87(2)(b) suffered one chipped tooth, one dislodged tooth, a busted lip, and bruising. § 87(2)(b) did not suffer from lasting injuries due to the pepper spray except for stinging in his eyes shortly after. Neither § 87(2)(b) nor § 87(2)(b) were arrested or summonsed during this incident, but several other protesters were (Board Review #02).

During their CCRB interviews, Police Officers Holguin and Osipowich provided misleading statements (**Allegations G and H: Untruthful Statement – Misleading Statement, Substantiated**).

Cell phone videos from § 87(2)(b) are attached in IAs #22 (Board Review #03) and #23 (Board Review #04) and summarized in IA #71 (Board Review #05). Surveillance footage from 1350 Sixth Avenue is attached in IA #84 (Board Review #06), with the relevant SnagIt clip attached in IA #123 (Board Review #07), which is summarized in IA #122 (Board Review #08). BWC of Police Officer Mikel Strauch of Strategic Response Group 4 is attached in IA #277 (Board Review #09) and summarized in IA #280 (Board Review #10). BWC of Lieutenant Christopher Schmidt of Strategic Response Group 1 is attached in IA #184 (Board Review #31) and

summarized in IA #196 (Board Review #32).

Findings and Recommendations

Allegation (A) Force: Lieutenant Richard Mack used pepper spray against individuals.

§ 87(2)(b) was interviewed via telephone on June 24, 2020 (Board Review #11). § 87(2)(b) was interviewed via telephone on June 30, 2020 (Board Review #12). Sergeant George Kalogeropoulos was interviewed by the CCRB on September 22, 2020. Police Officer Liosmely Holguin was interviewed by the CCRB on October 6, 2020. Police Officers Jason Brown and Katherine Osipowich were interviewed by the CCRB on October 14, 2020. Lieutenant Richard Mack was interviewed by the CCRB on March 2, 2021. Sergeant Keith Bryan was interviewed by the CCRB on March 23, 2021.

Lieutenant Mack testified that when he arrived at West 55th Street and Sixth Avenue on the night of the incident, the situation was chaotic and there were hundreds of protesters. Shortly after arriving, he saw a civilian throw a garbage can at an officer, which hit a different officer on the head and shoulder. This civilian and several others began jogging or briskly walking toward Lieutenant Mack while throwing rocks and water bottles and screaming. Some of the civilians screamed that they wanted to kill and hurt the officers. Lieutenant Mack yelled, “get back,” then took his MK-9 OC spray (larger than a standard OC spray bottle) out of his pocket. He deployed it at head height for approximately two seconds at the man who threw the can and at a few women from approximately five to ten feet away. Two to three people ran away but he did not know if they ever came back. According to Lieutenant Mack, the officers who carried MK-9 spray were primarily SRG officers, but he did not know what other officers, if any, carried it that night. Lieutenant Mack had received Disorder Control training with the Disorder Control Unit.

The SnagIt clip of the surveillance video from 1350 Sixth Avenue shows, at 00:23 into the video, an officer deploying a large cloud of pepper spray toward a group of people, after which the group quickly disperses (Board Review #07).

Upon viewing this portion of the video, Lieutenant Mack stated that he believed it depicted the deployment of MK-9 spray because it appeared to cover a larger area than a regular pepper spray canister, though he wasn’t completely certain. He also was not sure whether the officer shown in the video deploying the spray was himself. No other footage was found depicting an officer deploying pepper spray of this caliber.

The investigation credited Lieutenant Mack’s account of the actions civilians took and the general statements they made. His description of the protest was consistent with the numerous videos available, such as Police Officer Strauch’s BWC footage (Board Review #09) and § 87(2)(b) first cell phone video (Board Review #03).

According to the NYPD Tactical Awareness Bulletin on the use of OC spray, officers may use OC spray to gain control of persons who are exhibiting active aggression or to prevent individuals from physically injuring themselves, MOS, or other persons (Board Review #13). Patrol Guide Procedure 221-07 instructs officers to avoid discharging O.C. Pepper Spray indiscriminately over a large area for disorder control (Board Review #30).

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation A** be exonerated.

Allegation (B) Force: Police Officer Liosmely Holguin struck § 87(2)(b) with a baton.

§ 87(2)(b) alleged that, during a struggle between several civilians and officers, a short Hispanic female officer struck her in the face, causing her tooth to chip and lip to bleed. The investigation determined that the short Hispanic female officer was Police Officer Holguin, primarily because Police Officer Holguin identified herself in a video that § 87(2)(b) took after § 87(2)(b) was struck to capture the officer who hit her.

§ 87(2)(b) testified that she observed Police Officer Osipowich running toward § 87(2)(b) side of the sidewalk (East), potentially toward a protester kneeling on the ground. § 87(2)(b) ran over and placed her body between Police Officer Osipowich and the kneeling protester, and Police Officer Osipowich may have said, “get back, get back.” Several other civilians and officers joined the commotion and started yelling, but § 87(2)(b) did not touch any officer. After approximately two seconds, Police Officer Holguin stepped to Police Officer Osipowich’s left (from § 87(2)(b) perspective, Police Officer Holguin was on her right and facing her). Police Officer Holguin then lifted her baton approximately three feet into the air and brought it straight down; § 87(2)(b) immediately felt pain on her right cheek and lip. After she was hit, § 87(2)(b) covered her face and hunched over, then felt her tooth with her tongue and felt that it was chipped. § 87(2)(b) did not hear or see § 87(2)(b) getting hit but attributed that to the fact that many individuals were surrounding her and screaming.

Based on the testimonies of officers, especially Lieutenant Mack and Sergeant Bryan, the surveillance video from 1350 Sixth Avenue (Board Review #06), and BWC footage from Police Officer Strauch (Board Review #09), the investigation determined that the struggle § 87(2)(b) got involved in was the result of other protesters trying to prevent another civilian’s arrest. Police Officer Strauch’s BWC shows, starting at 00:45, officers running Northbound on Sixth Avenue and passing the vehicle parked in the middle of the street that Police Officers Brown, Osipowich and Holguin, and Sergeant Kalogeropoulos, had just exited (Board Review #09). A large group of civilians and officers is seen at the corner of Sixth Avenue, and later, the arrested individual is seen sitting on the curb at that corner. The investigation determined that this individual was § 87(2)(b) who was arrested for Obstruction of Governmental Administration, Disorderly Conduct, and Unlawful Assembly (Board Review #19).

§ 87(2)(b) first cell phone video of the incident, which he said began at 8:42 p.m., shows the actions of officers and civilians before and during the struggle that are highly consistent with his and § 87(2)(b) accounts of the incident (Board Review #03). At 1:02, Police Officer Holguin is seen at Police Officer Osipowich’s right. At 1:04, Police Officer Osipowich begins running toward the sidewalk, and Police Officer Holguin follows, running with her baton swinging beside her in her right hand. From 1:09-1:11, Police Officer Osipowich is seen pushing Police Officer Holguin away from the struggle with protesters (Sergeant Kalogeropoulos believed that during this moment, he had actually observed Police Officer Holguin pulling Police Officer Osipowich away from the struggle – regardless, both officers were involved). After this moment, the video goes black and some voices are heard, including § 87(2)(b) yelling, “Don’t fucking touch my wife,” and, “stop! Stop!” § 87(2)(b) believed that § 87(2)(b) was hit in the face sometime shortly after the video went black. After the yelling voices and commotion in the video turn quiet, § 87(2)(b) is heard saying at 01:46, “I chipped my tooth.”

Surveillance footage shows another angle of the same struggle and is also consistent with § 87(2)(b) account of the actions she and § 87(2)(b) took after she was hit. The

beginning of the SnagIt clip shows a crowd forming in the far left of the screen at 8:42 p.m. (Board Review #07). At 00:17, § 87(2)(b) who testified that she had been wearing black adidas pants, a black T-shirt with pink and purple designs on the front, black shoes, and her long hair in one braid to the side, is seen walking from the far left to the far right of the screen (away from the street and onto the sidewalk). Her left hand is covering her mouth as she limps onto the sidewalk, and at 00:22 another female civilian in a black tank-top and black pants extends her arm toward § 87(2)(b). At 00:30 § 87(2)(b) runs toward the street and waves to § 87(2)(b) who then runs over to her and holds her face for a few seconds. § 87(2)(b) stated in his interview that at this moment, § 87(2)(b) told him that she was bleeding and had just been hit by a Hispanic female officer (Police Officer Holguin) who was shorter than the blonde white female officer (Police Officer Osipowich).

Shortly after § 87(2)(b) told § 87(2)(b) what happened to her, she and § 87(2)(b) walked to the edge of the sidewalk to ask Sergeant Keith Bryan for the Hispanic female officer's name. § 87(2)(b) then took a second cell phone video to record the short Hispanic female officer (Board Review #04). At 00:13 into this video, the camera zooms in for several seconds to focus on two uniformed female officers, one of whom is shorter than the other. In her interview, Police Officer Holguin identified herself as the shorter officer at this moment in the video and Police Officer Osipowich as the taller one.

§ 87(2)(b) and § 87(2)(b) both stated in their interviews that they left the scene only a few minutes after the second video was taken. The IAB log shows that § 87(2)(b) called Internal Affairs at 8:55 p.m., only minutes after the incident (Board Review #01). The details he provided of his IAB complaint were consistent with the details he and § 87(2)(b) provided in their interviews with the CCRB a few weeks later. § 87(2)(a) – PHL 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Police Officer Holguin denied hitting § 87(2)(b) in the face with her baton and testified that she was instructed never to use her baton on someone's face. Every other officer interviewed likewise denied seeing Police Officer Holguin hit § 87(2)(b) in the face with her baton. Police Officer Holguin was trained to use her baton on a civilian's lower body when they used force against her, and to push civilians if they were fighting officers and did not follow verbal commands to get back. No officers interviewed recognized § 87(2)(b) or § 87(2)(b) or remembered seeing them at the protest, which most of them attributed to the fact that they had all responded to numerous protests at that time of year that involved similarly chaotic situations. The only notable action Police Officer Holguin could remember taking on June 1, 2020 was pushing people back, but she could not remember whether she did so at West 55th Street and Sixth Avenue.

The evidence refutes Police Officer Holguin's claim that she did not hit § 87(2)(b) in the face. First, it is undisputable that § 87(2)(b) did indeed chip her tooth during the struggle with officers, as supported by the footage of her limping away from the commotion holding her face, § 87(2)(b) video capturing her saying, "I chipped my tooth," § 87(2)(a) – PHL 18(6)

§ 87(2)(b) Additionally, her timeline of the actions different people took during the incident matched the available footage. § 87(2)(b) and § 87(2)(b) credibility is further established by the fact that they reported the incident to the Internal Affairs Bureau just minutes after the incident took place.

Additionally, the available evidence suggests that Police Officer Holguin is the only officer at the protest who could have hit § 87(2)(b) in the face. Though no video footage specifically shows Police Officer Holguin hitting § 87(2)(b) in the face with her baton, it does show her running toward the chaotic group of people with her baton out and next to Police Officer Osipowich. After § 87(2)(b) was hit, she described Police Officer Holguin to § 87(2)(b) prompting him to take a video zooming in on her, which Police Officer Holguin identified as herself. Additionally, as seen at 1:05 in § 87(2)(b) first cell phone video, after Police Officer Osipowich runs toward the crowd, Police Officer Holguin is the only officer in the near vicinity (Board Review #03). The numerous other BWCs showing the lead-up and aftermath of the struggle on the corner do not appear to show any other officers in the vicinity who match § 87(2)(b) description of the subject. For example, Police Officer Strauch's BWC, which depicts his approach toward the chaotic arrest, does not appear to show any additional Hispanic female officers who fit § 87(2)(b) description of the subject (Board Review #09). The arrest cannot be clearly seen in his video (which, of the BWC videos, captures the incident most clearly), and it had dispersed by the time he arrived at the corner at around 1:00 into the footage. The first few minutes of Lieutenant Schmidt's BWC, in which he walks up and down the line of officers across Sixth Avenue, also shows that most of the other officers present appear to be male, and the few females present appear to be white and taller than Police Officer Holguin (Board Review #31). Thus, given the evidence demonstrating that § 87(2)(b) was struck in the face and that Police Officer Holguin was the only officer who could have done so, the investigation determined by a preponderance of the evidence that Police Officer Holguin hit § 87(2)(b) in the face with a baton.

Patrol Guide Procedure 221-01 authorizes officers to use a reasonable amount of force on civilians (Board Review #22). The reasonability of the force is determined by several factors, including the nature and severity of the circumstances, actions taken by the subject, and the presence of a hostile crowd. Patrol Guide Procedure 221-03 defines deadly physical force as any force that is readily capable of causing serious physical injury, which includes broken or fractured bones and an injury requiring hospital admission (Board Review #23). A baton strike to the face is considered deadly physical force. Finally, Patrol Guide Procedure 221-02 states that officers should not use impact weapons on persons who are passively resisting, which is defined as minimal physical action to prevent a member from performing their lawful duty, such as failing to comply with a lawful command (Board Review #24).

§ 87(2)(g)
§ 87(2)(b) placed her body between officers and a civilian under arrest, thus obstructing governmental administration. Additionally, as all parties testified and as the videos show, the struggle § 87(2)(b) was involved in was chaotic and hostile.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be substantiated.

Allegation (G) Untruthful Statement: On October 6, 2020, Police Officer Liosmely Holguin provided a misleading official statement to the CCRB.

Police Officer Holguin offered little specific information about the incident during her interview. Among many other details, she testified that she could not specifically remember ever being at West 55th Street and Sixth Avenue, even after viewing a Google streetview image of the intersection. She also could not remember the specific actions she took other than "pushing people

back,” which she also did at many other protests around the same time of year. Numerous cell phone, BWC, and surveillance videos, along with a photograph of § 87(2)(b) and § 87(2)(b) did not refresh Police Officer Holguin’s memory of any part of the incident. Additionally, though she confidently identified herself as the short female officer in § 87(2)(b) blurry, second cell phone video (Board Review #04), which shows her merely standing in the street with Police Officer Osipowich, she could not identify herself at any point in his first video (Board Review #03), which shows her running toward a group of civilians with her baton out and getting pushed back away from the crowd by Police Officer Osipowich. Though she said she could not identify herself as the female officer in the first video because she couldn’t see the officer’s face, the face of the officer in the second video is just as obscured. This statement is captured between 45:50-48:06 in her interview recording, attached in IA #240 (Board Review #33).

According to Patrol Guide Procedure 203-08, a statement is misleading when it is intended to misdirect the investigator and materially alter the narrative by intentionally omitting material facts, or by making repeated claims of “I don’t remember” when a reasonable person under similar circumstances would recall such material facts (Board Review #14).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be **substantiated**.

Allegation H: Untruthful Statement: On October 14, 2020, Police Officer Katherine Osipowich provided a misleading statement to the CCRB.

Police Officer Osipowich acknowledged during her interview that she was indeed present at the incident location and instructed protesters to move onto the sidewalk. However, like Police Officer Holguin, she refused to identify herself in several videos. Her sergeant, Sergeant Kalogeropoulos, identified her as the female officer seen right in front of the camera and directing civilians to move back, as seen between 00:45 and 00:50 in § 87(2)(b) first cell phone video (Board Review #03). He is heard identifying her from 54:23-54:33 in his interview recording, attached to IA #227 (Board Review #35). Police Officer Osipowich, however, stated that she could not tell whether the individual was herself for several reasons. Her first reason was that the helmet worn by the officer in the video bore a shield number that was not her own; she apparently had just taken her assigned helmet, which was equipped with her shield number, out of the bag that day. Second, she stated that she could not confidently say whether the female officer was herself because the face was obscured; yet, her sergeant was able to easily. Similarly, though she was unable to identify herself as the taller female officer standing in the street in § 87(2)(b) second video, she was able to identify Sergeant Kalogeropoulos, whose face was blurrier and farther away than hers (Board Review #04). This statement is captured in her interview recording, attached to IA #263, from 41:38-43:14, and 51:50-52:50 (Board Review #34).

As stated previously, according to Patrol Guide Procedure 203-08, a statement is misleading when it is intended to misdirect the investigator and materially alter the narrative by intentionally omitting material facts (Board Review #14).

Police Officer Osipowich did not identify herself as seen relatively clearly in a video showing her taking an action (directing civilians – verbally and physically – to move onto the sidewalk) that her sergeant was able to identify § 87(2)(g)

It is thus recommended that **Allegation H** be substantiated.

Allegation (C): Abuse of Authority: Sergeant Keith Bryan did not obtain medical treatment for § 87(2)(b)

Allegation (D): Force: Sergeant Keith Bryan used pepper spray against individuals.

Allegation (E): Force: Sergeant Keith Bryan used pepper spray against § 87(2)(b)

Allegation (F): Force: Sergeant Keith Bryan used pepper spray against § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) testified that after § 87(2)(b) was hit in the face, prompting her to run from the commotion, she told § 87(2)(b) what happened and who hit her. To try to get some help or the name of the officer who hit § 87(2)(b) they both walked over to Sergeant Bryan, who was the nearest officer standing on the curb. A male was sitting on the curb approximately eight feet away from Sergeant Bryan, but he did not appear to be doing anything related to the male. For several minutes, and while being mindful to maintain at least six feet of distance from Sergeant Bryan, § 87(2)(b) and § 87(2)(b) attempted to speak with him and ask him questions, to which he barely responded. In fact, he said very little except for intermittently telling nearby civilians to “Get back.” § 87(2)(b) also believed that at some point, she told Sergeant Bryan to look at her face and she said, “Can’t you see I just got hit?” Neither made any motions toward Sergeant Bryan other than § 87(2)(b) who believed she may have squatted while they spoke with him. Nothing else of note occurred while they tried to talk to him, including anything chaotic or violent; protesters had stopped marching and many people were on the other side of the street by this point in the incident. After about thirty seconds to a few minutes, Sergeant Bryan, without saying anything, pepper sprayed § 87(2)(b) and several other nearby protesters. § 87(2)(b) was far away enough that the spray did not get in her eyes but § 87(2)(b) eyes were stinging.

While Sergeant Bryan could not remember seeing § 87(2)(b) and § 87(2)(b) at the protest, his account of his actions leading up to the pepper spray were mostly consistent with § 87(2)(b) and § 87(2)(b) accounts. He added that, after seeing protesters try to prevent the arrest of another protester (likely § 87(2)(b)) he stood in front of the arrestee and paced back and forth to protect him from further involvement by other protesters. For several minutes, a group of over 10 people periodically stepped forward, then Sergeant Bryan told them to step back; they would step forward again, and the process repeated. He believed they were doing this to try to harm him and to get to the arrestee, who was sitting on the curb in cuffs. They called Sergeant Bryan names, cursed at him, and made threats he could not specifically remember. He did not know how far away they were. Without issuing a warning, he then engaged his pepper spray for a few seconds which he believed contacted a few people. No officers were trying to take any of these individuals into custody and Sergeant Bryan could not indicate any additional events that took place that caused

him to engage the spray at that time, other than that protesters kept moving an unknown distance toward him after he told them to get back. He never heard any civilian request medical attention from him and denied refusing to obtain medical attention for anyone; if a civilian had come up to him while they were bleeding from the face, he would have called EMS.

The surveillance footage from 1350 Sixth Avenue supports § 87(2)(b) and § 87(2)(b) accounts of their interaction with Sergeant Bryan. At 00:36 into the SnagIt clip, Sergeant Bryan, a black male with a slim build, dark uniform, and helmet, is seen coming into the frame from the top left of the screen and seems to motion to protesters with his baton to get back (Board Review #07). § 87(2)(b) and § 87(2)(b) are seen at 00:38 on the sidewalk near the top right of the screen; § 87(2)(b) in a black shirt and white hat, is holding § 87(2)(b) face, whose back is toward the camera. A group of approximately 15-20 protesters, who appear to be mostly filming the protest and maintaining at least a few feet of distance from Sergeant Bryan, starts to form. § 87(2)(b) and § 87(2)(b) join this group (standing on the far side of a large statue of a person), and § 87(2)(b) steps in front of the statue to take a short video with his phone – his second cell phone video (Board Review #04). For a couple of minutes, as seen in the surveillance video (Board Review #07), none of the civilians makes any quick motions toward Sergeant Bryan, and several cross right in front of him which does not seem to bother him. Though it appears that Sergeant Bryan tells or motions to people several times to move back, they usually seem to comply by walking away or merely stepping back. No one appears to throw any objects. At 3:15, a couple of civilians walk from the other side of the street toward the statue (the side where § 87(2)(b) and § 87(2)(b) are standing). When they are about a car length's distance from Sergeant Bryan, one of the civilians appears to motion toward him in a nonthreatening manner. Sergeant Bryan then takes two steps toward these individuals and lifts his right arm at shoulder height for about one second toward those protesters, after which about three individuals run away in different directions, some holding their faces.

Upon viewing this portion of surveillance footage, Sergeant Bryan stated that it seemed to depict the incident he described, in which he went back and forth with a group of protesters before engaging his OC spray toward them. However, he did not know whether the officer seen above a woman in a green jacket, seen at the top left of the screen, was himself. He viewed the footage from 02:46 to 02:50, in which § 87(2)(b) is seen squatting on the ground. He denied hearing § 87(2)(b) tell him at this moment in the incident that she was bleeding. He denied using the OC spray on § 87(2)(b) and § 87(2)(b). If a civilian had come up to Sgt. Bryan while bleeding from their face, he would have called EMS. He did not know whether EMS was called to that location. Sergeant Bryan believed the black male officer seen pacing in § 87(2)(b) cell phone video was himself, that it was taken at West 55th Street, and that it showed him protecting the arrestee behind him (Board Review #04).

Patrol Guide Procedure 221-02 states that officers should not use O.C. Pepper Spray on persons who are passively resisting (Board Review #24). Officers may use a greater level of force on individuals who exhibit active aggression, which is defined as a threat or overt act of assault through physical or verbal means, coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. Patrol Guide Procedure 221-07 instructs officers to avoid discharging O.C. Pepper Spray indiscriminately over a large area for disorder control (Board Review #30).

§ 87(2)(g) the surveillance footage supports the notion that none of these protesters actually made attempts to carry out those threats. None of the protesters got close enough to Sergeant Bryan to harm him in any way, nor did they approach the arrestee behind him. § 87(2)(b)

§ 87(2)(g)

As seen in the surveillance footage, Sergeant Bryan appeared to engage the spray toward the two civilians running across the street immediately after they said something to him. § 87(2)(g)

Additionally, besides the few moments that § 87(2)(b) stepped in front of the statue to take a video, which did not seem to bother Sergeant Bryan (as § 87(2)(b) was able to stand there for about 20 seconds), neither § 87(2)(b) nor § 87(2)(b) moved closer to Sergeant Bryan or made any motions toward him. It is therefore recommended that **Allegations D, E, and F be substantiated.**

§ 87(2)(g)

It is therefore recommended that **Allegation C be unsubstantiated.**

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) (Board Review #25) and § 87(2)(b) (Board Review #26) have been parties.
- Police Officer Jason Brown has been a member-of-service for nine years and has been named a subject in eight CCRB cases and 19 allegations, five of which were substantiated.
 - Case #201807353 involved allegations of physical force, threat of force, discourtesy – action, discourtesy – word, and improper use of BWC. The board substantiated only the discourtesy – action allegation and the improper use of BWC, and the NYPD imposed Command Discipline – A on these allegations.
 - § 87(2)(g)
- Police Officer Liosmely Holguin has been a member-of-service for two years and has been named a subject in one CCRB case and one allegation, which was not substantiated. § 87(2)(g)
- Lieutenant Richard Mack has been a member-of-service for 26 years and has been named a subject in 15 CCRB cases and 22 allegations, none of which were substantiated. § 87(2)(g)
- Sergeant Keith Bryan has been a member-of-service for 29 years and has been named a subject in 10 CCRB cases and 21 allegations, five of which were substantiated.
 - CCRB Case #9402777 involved allegations of force – nightstick/billy/club, threat of force, and discourtesy – curse, all of which were substantiated. No recommendations were given and no NYPD MOS penalty is listed.
 - CCRB Case #9503224 involved allegations of force – other and vehicle search, both of which were substantiated. Command discipline was recommended and no NYPD MOS penalty is listed.
 - § 87(2)(g)

